

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****DAJHOUN PEREZ,**

Plaintiff,

-against-

**THE CITY OF NEW YORK; Detective
RASHAN AUSTIN, Shield #189, Tax ID
926526; Detective ELIJAH AUSTIN,
Shield #833, Tax ID 944338; Detective
ANDREW PAGANO, Shield #1895, Tax ID
954136; Sergeant MIGUEL MARTE,
Shield #4050, Tax ID 927135,**

Defendants.

Index No.:

SUMMONSPlaintiff designates Kings County as
the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
February 1, 2023**Rickner PLLC**

By:



Sara Wolkenstorfer

14 Wall Street, Suite 1603

New York, New York 10005

Phone: (212) 300-6506

Fax: (888) 390-5401

Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, NY 10007

Detective RASHAN AUSTIN
Shield #189, Tax ID 926526
Brooklyn Robbery Squad
653 Grand Avenue
Brooklyn, NY 11238

Detective ELIJAH AUSTIN
Shield #833, Tax ID 944338
079 Detective Squad
263 Tompkins Avenue
Brooklyn, NY, 11216-1220

Detective ANDREW PAGANO
Shield #1895, Tax ID 954136
081 Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

Sergeant MIGUEL MARTE
Shield #4050, Tax ID 927135
Drug Enforcement Task Force
99 10th Avenue
New York, NY 10011

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****DAJHOUN PEREZ,**

Plaintiff,

-against-

**THE CITY OF NEW YORK; Detective
RASHAN AUSTIN, Shield #189, Tax ID
926526; Detective ELIJAH AUSTIN,
Shield #833, Tax ID 944338; Detective
ANDREW PAGANO, Shield #1895, Tax ID
954136; Sergeant MIGUEL MARTE,
Shield #4050, Tax ID 927135,**

Defendants.

Index No.:

VERIFIED COMPLAINT

Plaintiff DAJHOUN PEREZ, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department (“NYPD”), who violated Plaintiff’s rights under the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiff’s rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because Plaintiff’s claims arose in the County of Kings.

5. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff DAJHOUN PEREZ is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

7. Defendant the CITY OF NEW YORK is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

8. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

9. Defendant Detective RASHAN AUSTIN (Shield No. 189, Tax ID No. 926526) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law and acting in the course and scope of his duties. He is sued in his individual capacity.

10. Detective Rashan Austin is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

11. Defendant Detective ELIJAH AUSTIN (Shield No. 833, Tax ID No. 944338) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law and acting in the course and scope of his duties. He is sued in his individual capacity.

12. Detective Elijah Austin is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

13. Defendant Detective ANDREW PAGANO (Shield No. 1895, Tax ID No. 954136) (hereinafter “Pagano”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law and acting in the course and scope of his duties. He is sued in his individual capacity.

14. Detective Pagano is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

15. Defendant Sergeant MIGUEL MARTE (Shield No. 4050, Tax ID No. 927135) (hereinafter “Marte”) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law and acting in the course and scope of his duties. He is sued in his individual capacity.

16. Sergeant Marte is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

17. Collectively Detective Rashan Austin, Detective Elijah Austin, Detective Pagano, and Sergeant Marte are referred to as the “Individual Defendants.”

18. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

19. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

20. On February 4, 2020, at approximately 6:30 p.m. at a New York City Police Department ("NYPD") Special Victims Squad location, 653 Grand Avenue, Brooklyn, New York 11238, Plaintiff was detained and arrested by the Individual Defendants without probable cause.

21. Plaintiff was placed in a lineup for a robbery that had occurred at 65 Tompkins Avenue, Brooklyn, New York 11206 on January 15, 2020, at approximately 12:30 p.m.

22. The Individual Defendants falsely reported that Plaintiff was positively identified in the lineup and also in a video retrieved from outside 65 Tompkins Avenue from the day and time the alleged crime occurred.

23. As a result of the Individual Defendants' actions, Plaintiff was unlawfully detained at the Special Victims Squad location and at Central Booking for over 40 hours prior to his arraignment.

24. The Individual Defendants initiated prosecution without probable cause and using false evidence and statements, in the criminal action designated *The People of the State of New York v. Dajhoun Perez*, Docket No. CR-003243-20KN.

25. The false evidence and statements included allege that Plaintiff was positively identified in the lineup; that Plaintiff was positively identified from a video outside the premises where the robbery occurred; that Individual Defendants recognized Plaintiff from wanted fliers and prior arrests; and that his defense attorney was not present during the lineup.

26. These wrongful charges were dismissed on March 16, 2020.

THE INDIVIDUAL OFFICERS' HISTORY OF MISCONDUCT

27. Detective Rashan Austin has a history of violating people's civil rights while employed by the NYPD, including one civil lawsuit and five Civilian Complaint Review Board ("CCRB") complaints.

28. Detective Elijah Austin has a history of violating people's civil rights while employed by the NYPD, including one civil lawsuit, eleven (11) CCRB complaints, and four Internal Affairs Bureau ("IAB") investigations.

29. Detective Pagano has a history of violating people's civil rights while employed by the NYPD, including three civil lawsuits and four CCRB complaints.

30. Sergeant Marte has a history of violating people's civil rights while employed by the NYPD, including one civil lawsuit, twenty-five (25) CCRB complaints, and three IAB investigations.

31. Despite these repeated incidents of misconduct, the City of New York of New York has failed to meaningfully discipline or properly supervise the Individual Defendants.

THE INJURIES TO PLAINTIFF

32. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering and loss of liberty that Plaintiff was forced to endure as a consequence of the Individual Defendants decidedly wrongful actions.

33. The Individual Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such the Individual Defendants are liable for punitive damages, as is the City of New York under the doctrine of *respondeat superior*.

34. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

35. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

36. The Individual Defendants restrained and arrested Plaintiff without probable cause.

37. The detention was also unreasonable in that Plaintiff was held more than 40 hours without arraignment.

38. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

39. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer economic and emotional injuries, as well as a deprivation of liberty.

40. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

42. The Individual Defendants initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

43. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

44. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer economic and emotional injuries, as well as a deprivation of liberty.

45. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

48. The Individual Defendants provided false evidence and statements to the prosecution, defense counsel, and court, including allegations that Plaintiff was positively identified in the lineup; that Plaintiff was positively identified from a video outside the premises where the robbery occurred; that Individual Defendants recognized Plaintiff from wanted fliers and prior arrests; and that his defense attorney was not present during the lineup.

49. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of due process and trial rights guaranteed under the Fifth, Sixth, and Fourteenth

Amendments to the United States Constitution to be free from prosecution based on false statements and under *Brady v. Maryland*, 373 U.S. 83 (1963), and the Individual Defendants are therefore is liable to Plaintiff for damages under 42 U.S.C. § 1983.

50. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer economic and emotional injuries, as well as a deprivation of liberty.

**FOURTH CLAIM FOR RELIEF:
FAILURE TO INTERVENE AND CONSPIRACY UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

52. The Individual Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that they had opportunities to do so.

53. The Individual Defendants thereby displayed deliberate indifference to Plaintiffs rights, including Plaintiffs right to be free from unreasonable and unlawful searches and seizures.

54. The Individual Defendants also Defendants agreed among themselves and with other individuals to act in concert and thus conspired to deprive Plaintiff of clearly established civil rights.

55. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of civil rights guaranteed under the Constitution of the United States, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 USC § 1983.

56. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer economic and emotional injuries, as well as a deprivation of liberty.

57. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

**FIFTH CLAIM FOR RELIEF:
MONELL CLAIMS AGAINST THE CITY OF NEW YORK**

58. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

59. The City of New York is liable for the conduct of the Individual Defendants under *Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978) because the driving force behind these constitutional violations were the *de facto* and explicit policies and practices of the NYPD and the City of New York.

60. As a result, the City of New York is liable for any damages caused, except for punitive damages.

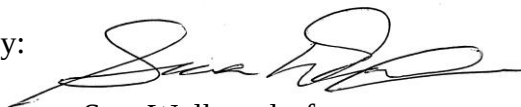
WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Individual Defendants, as well as the City of New York:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
February 1, 2023

Rickner PLLC

By:

A handwritten signature in black ink, appearing to read "Sara Wolkenstorfer", written over a horizontal line.

Sara Wolkenstorfer

Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

I, Sara Wolkensdorfer, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

1) I am the attorney of record for the Plaintiff.

2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.

3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
February 1, 2023

Rickner PLLC

By:



Sara Wolkensdorfer

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
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Attorney for Plaintiff